

		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service. No earlier hearing date is available for this motion.
10	Padilla v. Surgical Care Affiliates, LLC, et al. 2024-01399066	<u>Status Conference in Padilla v. Surgical Care Affiliates, LLC, Case No. 2024-01399066</u> The court has reviewed the parties' joint status conference statement filed June 17, 2026 (ROA 74), and based thereon continues the June 25, 2026 status conference to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
11	Teffeteller v. Fitness International, LLC 2024-01407578	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$783,115 PAGA settlement. The court has the following questions and comments: 1. Were the supplemental motion papers submitted to the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. In the February 26, 2026 order (ROA 101), the court stated that the parties should provide the average, high and low individual PAGA payments. Plaintiff states the parties cannot do so at this time. Supp. Brief (ROA 104) at 14:3-9. This information is routinely provided with approval motions and the parties are ordered to provide it with the supplemental filing. Relatedly, plaintiff estimates the net settlement amount is approximately \$126,638.32. Supp. Brief at 15:13. Plaintiff states there are 20,326 aggrieved employees. <i>Id.</i> at 17:21. Is the estimated average individual PAGA payment \$6.23? 3. Paragraph 8 of the amendment to the settlement agreement should be revised (i) to specify the "Settlement" referred to in the first sentence, and (ii) to state that defendant will pay \$2,500 to plaintiff in addition to paying the \$785,115 Settlement Payment. Supp. Daugherty Decl. (ROA 106) Ex. 3; see also 2/26/26 Order (ROA 101) No. 6. 4. The "Releasees" provision in paragraph 10 of the amendment to the settlement agreement remains overbroad. See 2/26/26 Order (ROA 101) No. 7. It includes unrelated, ambiguous and/or unidentified third parties such